STEVEN NEWCOMB (SHAWNEE/LENAPE)

MY DECADES-LONG INQUIRY INTO THE DOCTRINE OF CHRISTIAN DISCOVERY AND DOMINATION

Abstract

The author Steven Newcomb (Shawnee/Lenape) reflects on his lifelong study of the Doctrine of Christian Discovery and Domination, tracing its origins, legal codifications, and enduring impact on Native nations. Motivated by reading *Bury My Heart at Wounded Knee* at age fifteen, Newcomb situates his inquiry within his family history, including Shawnee and Delaware ancestry and his grandparents' experiences in U.S. Indian boarding schools designed to eradicate Native languages and culture. Newcomb examines the 1493 papal bull *Inter Caetera*, which sanctioned European Christian domination over non-Christian peoples, and the 1823 U.S. Supreme Court ruling *Johnson v. McIntosh*, which codified the legal principle that "discovery" granted title and authority over Native lands. By exploring the etymology of key terms—dominion, conquest, civilization, ascendancy, and sovereignty—he demonstrates how language was weaponized to legitimize domination. Newcomb argues that federal Indian law and the U.S. property system are founded upon a claim of despotic dominion over Native nations and their lands, contrasting sharply with the original free and independent existence of Indigenous peoples. He emphasizes the importance of recovering Native languages, cultural traditions, and spiritual knowledge to challenge this imposed system. Drawing on decades of research, collaboration with Native scholars, and public advocacy, Newcomb calls for a reclamation of sovereignty grounded in reverence for life, and for a conscious movement away from the colonial mindset embedded in law, language, and governance.

Keywords: Doctrine of Christian Discovery, U.S property system, Native nations, cultural reclamation, language recovery, colonial mindset, boarding schools, life-centerd sovereignty, despotic dominion, reclamation, resistance, and colonial law.

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A Brief Note About Newcomb's Domination Translator:

Many years ago, something became evident to me. Even when someone is looking at a term of domination, such as the word "conquest," most people will never notice the correlation between conquest and domination. To make it easier for people to notice that connection, I decided to place "domination" in brackets after a word that means "domination," such as the word "conquest domination." Here are some additional examples: civilization domination; state domination; sovereignty domination; ascendancy domination; dominion domination; property domination; empire domination.

A Personal Context for My Journey

I was fifteen years old when I read Dee Brown's heart-wrenching *Bury My Heart at Wounded Knee* (1970), which culminates with the Wounded Knee Massacre of 1890.[1] The dark history that Brown recounts sparked a rage in me and placed me firmly on a life-long journey of inquiry and insight. I'd like to use this essay to reflect upon some of the highlights of my journey and the findings that I've uncovered as a result of my deep and abiding anger, and my scholarly trek into some of the history of the mental world of Christian European society.

My mom's mother was Bessie Edmunds. She was Shawnee and born in the Indian Territory in 1899. She was the daughter of a Shawnee man named Samuel Edmunds. For a while he was a deputy U.S. Marshall. He spoke Shawnee, Delaware, Osage, Cherokee, English, and a bit of French. The cabin he built and the allotment of land he built it on are both at the bottom of Lake Nowata, a man-made lake. Grandma Bessie's mother was a Welsh woman named Minnie Roberts who didn't care for any Indian language to be spoken in the home.

My mom's father was Bushyhead Spybuck Newcomb. He was a Delaware Indian on both sides of his family. Grandpa Bush's father was a Delaware (Lenape) man named Solomon Newcomb, which is why my Grandpa Bush was not Shawnee, even though he has a Shawnee Surname as his middle name. My grandpa Bush's mom was a Delaware woman named Suzie Tonganoxie.

Suzie Tonganoxie was married to a Shawnee man named Henry Spybuck at the time she ended up getting pregnant by my great-grandfather Solomon. My Grandpa Bush was born in the Indian Territory in 1901. Because my grandpa Bush was born with somewhat curly hair, she named him "Bushyhead (a prominent Cherokee name) Spybuck Newcomb," which is the name on his records at the Bureau of Indian Affairs. My great-grandmother Suzie passed away when my Grandpa Bush was only four. The town of Tonganoxie in Kansas is named after our Tonganoxie family.

My great-grandfather Solomon and my grandfather Bush both ended up at the Haskell Institute a generation apart. Haskell was one of hundreds of so-called Indian Boarding "Schools" established by the United State government to destroy Native languages, cultures, and ceremonial traditions. Haskell was located in Lawrence, Kansas.

The goal of all those institutions was to assimilate Native children into American society by preventing them from learning their own language and culture. My grandpa Bush was 15 years old when he ran away from Haskell in 1916 to join the U.S. Army. The school

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[1] Dee Brown, *Bury My Heart at Wounded Knee* (Holt, Rinehart & Winston, 1970).

administrators stamped "AWOL" on his file because it was a military academy for boys. These days, Indian Nations University is located on the grounds where the Haskell Institute existed.

My Shawnee great-grandfather Sam Edmunds was best friends with Chief Bacon Rind of the Osage (Wah-she hah "Star that Travels"). Dr. Tink Tinker is an Osage friend of mine who has a Ph.D. in theology, and Tink taught at the Iliff School of Theology in Denver, Colorado for thirty-four years. Two summers ago, he and I traveled to the Stockbridge Munsie Reservation in Wisconsin to speak on the Doctrine of Christian Discovery. During my talk I mentioned to our audience that John W. Newcomb was one of our ancestors, and he was Munsie.

When a small group of us went to dinner that evening, a man met us at the restaurant. He works with the Stockbridge-Munsie census records from the nineteenth century. He handed me a copy of the page that has our Newcomb family is listed as "Newcom." It's dated 1851. Receiving that document was a wonderful moment for me. "John W. Newcom" is listed as eight years old at that time.

My Native grandparents left Oklahoma during the Great Depression and eventually ended up in Price, Utah. That's where my mother Georgia was born in April of 1936. From there they traveled to Idaho and made their way to Portland, Oregon, with six children. Because my Grandpa Bush and Grandma Bessie both loved spending time out in nature, hunting and fishing, they had dreamt of one day moving to the beautiful Pacific Northwest. Grandma and Grandpa lived in Portland for the rest of their lives. And that's where I was born at the Multnomah hospital in 1955.

My Dad's family lineage is traced to England. My Grandma Bessie was often my "day care." Years later, she told me that one day she witnessed me reading to my cousin Jimmy in her living room when I was only four. That's because my Dad taught me how to read. He's now 88 years old and I jokingly tell him, "Hey Dad, if it weren't for you taking pity on that little kid and teaching him how to read, I wouldn't be doing this work today." He instilled in me a deep love of reading, and a voracious appetite for knowledge. He still reads every day with stacks of books piled high around him.

I was probably fourteen years old when my mother explicitly acknowledged our Native ancestry. It made me angry to have been raised without any awareness or knowledge of our Shawnee or Delaware language and culture. But when we think of the destructive purpose of the so-called Indian boarding "schools," that lack of knowledge was in large part a result of a grand design by the U.S. and Canadian governments. I'm still angry about it, but I have learned how to channel and transmute the energy of all that emotion by means of my spiritual practices along with my research, thinking, writing, and public speaking.

My wife Paige Giberson and I have been together for 42 years. Her father's family is Pennsylvania Dutch (German) and Moravian, which is coincidental given the generations of connection between our Delaware people and the Moravian missionaries. Her mother's family were Quakers**.** The maternal grandmother of her Grandma Ida was Pheobe Fincher, who was the daughter of a Cherokee woman only known in her family's oral history as "Indian Mary." Paige calls that Native connection her "Red Thread." Her grandma Ida and her mother Margaret took that Native connection very seriously and taught Paige her family's oral history and important life skills based on that knowledge.

Paige has been selfless and unwavering in her loving support over the decades, and I am grateful daily for our enduring relationship and friendship. For the first decade we were together, our long discussions about my findings helped me to process the information I was uncovering. Those endless conversations were foundational and resulted in additional insights. One of her beautiful contributions to this work is her slogan, "Join Us on Our Journey of Recovery from Discovery," to which I add "and Domination."

Setting the Context for this Essay

These days I begin any presentation I make by "setting the context." I do so by first acknowledging the free and independent existence of our Native ancestors, extending back to the beginning of our time, through our oral history and oral traditions. I find it helpful to reflect upon the contrast between the free way of life of our ancestors, and the system of domination that was brought by ship across the ocean centuries ago to this Turtle Island continent and imposed on everyone and everything.

The contrast between our ancestors' free existence and that system of domination enables us to acknowledge our Native ancestors' view-from-the shore perspective as they looked out at invasive ships sailing toward them. And from their Christian European perspective, the seafaring people had a view-from-the-ship as they stood on the ship's deck looking toward the lands of our Native ancestors. This essay is being written with a heightened awareness of our original free existence as Native nations and peoples and our view-from-the-shore perspective.

Attempting to Use the Colonizers' Language to Free Ourselves from the System of Domination that is Created and Maintained by the Colonizers Language

How strange that the system of domination that was carried by ship across the ocean centuries ago, and imposed on our free and independent ancestors, was the system used to destroy as much as possible our original Native languages. Today, it is probably accurate to say that most Native people have been reduced to communicating by means of the language of our ancestors' invaders.

Because generations of Native children were subjected to a genocidal assimilation agenda in the so-called "boarding schools," we as Native people(s) are now attempting to make sense of our very existence by means of the foreign language of the invaders rather than by means of the languages that our ancestors spoke to maintain their existence and make sense of their lives.

Think about it: 1) Genocide is the intention to destroy in whole or in part the very existence of a nation or people,[2] and 2) The language of an entire People is the primary means by which that People has been able to maintain their very existence, and 3) If a People have been deprived of their own language by the brutality inflicted on them by a foreign invading People, and 4) if their own language has been replaced by the language of the invaders to such an extent that the invaders' language is now their primary means of communication, don't these key points add up to *prima facie* evidence of the invaders' intention and concerted effort to destroy them as a distinct and free People? It's evidence of the effort to destroy their very existence by means of genocide, the full meaning of which is more comprehensive than physically killing the people.

We Face a Daunting Task as Original Nations and Peoples

We as Native people living in the context of the United States or Canada are faced with a formidable challenge. We face the task of learning how to think and write innovatively about the invasion and colonization of our nations and peoples by the peoples who sailed here to this

[2] Tamara Starblanket, Suffer the Little Children: Genocide, Indigenous Nations, and the Canadian State (Clarity Press, 2018), 39-45.

Turtle Island continent from Western Christendom (Western Europe "where Christianity prevailed (dominated)"). Ideally, we need to accumulate massive amounts of information in many different fields of study so we can begin looking for any patterns that become apparent in that vast array of data.

But it is also necessary to learn as much as possible about our own languages, cultures, and spiritual/ceremonial traditions so that we can understand the contrast between *our* ways of knowing and understanding and the invaders' ways of knowing and understanding. This requires spending as much time as possible with Elders and traditional-minded Native people who have an ability to impart to us ancient and ceremonial ways of thinking, knowing, and speaking. Truly profound insights and understandings begin to emerge for us as we begin to understand and experience the *contrast* between the mental and ceremonial world of our original nations in our own languages, and the colonizers' life-destroying mental world of domination.

The Start of My Personal Journey

I was still a teenager when I mentioned to a Navajo acquaintance of mine that I had read Dee Brown's *Bury My Heart at Wounded Knee*, he commented that Brown's book wasn't giving me a contemporary insight into Native issues. He recommended that I read Vine Deloria, Jr.'s *Custer Died for Your Sin*s.[3] Thankfully, I took his advice.

After reading *Custer Died*, I read other books written by Deloria, such as *God is Red* (1973).[4] It was while reading *God is Red* that I first came across wording from the *Inter Caetera* Vatican papal bull issued by Pope Alexander VI in 1493. As a source, Deloria cited Wilcomb Washburn's quote of the papal bull in his book *Red Man's Land, White Man's Law* (1971).[5]

In *God is Red*, Deloria used the following wording that Washburn quoted from papal decree issued by Pope Alexander VI on behalf of the Holy See (i.e. the Catholic Church):

> Among other works well pleasing to the Divine Majesty [God] and cherished of our heart, this assuredly ranks highest, that in our times especially the Catholic faith and the Christian religion be exalted and everywhere increased and spread, that the health of souls be cared for and that barbarous nations be overthrown [forced under domination] and brought to the faith itself.[6]

I was probably nineteen years old when I first read that five-hundred-year-old quote. And at the time I read those fifty-seven words, I had no idea what a deep rabbit hole that wording would send me down, and the influence that information would have on the rest of my life. Deloria considered the above quote from the pope's decree to be evidence of what he blandly called "the basic Christian attitude" toward the so-called New World.

Based on what I know today, with decades of research "under my belt," I see the need to rephrase Deloria's comment. I would say that the above excerpt from the papal decree is evidence of "the basic Christian attitude *of domination*" toward the original nations and peoples of the non-Christian world, and as evidence of the contrast between the free and independent existence of the Native peoples and the Christian European *claim of a right of domination* imposed on our ancestors and on our lands.

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[3] Vine Deloria, Jr., Custer Died for Your Sins: An Indian Manifesto (MacMillan, 1969).

[4] Vine Deloria, Jr., *God Is Red: A Native View of Religion* (The Putnam Publishing Group, 1973).

[5] Wilcomb Washburn, *Red Man and White Man's Law* (Charles Scribner's Sons, 1971).

[6] Deloria, *God is Red*, 258.

Enrolling at the University Oregon

For a number of reasons, I had dropped out of high school in 1971. In the mid 1970s, when I was nineteen years old, I entered a high school equivalence program that was located on the campus of the University of Oregon (UofO). After earning a G.E.D., I was able to enroll as a freshman student at the University of Oregon.

I took a public speaking class that was being taught by an extraordinarily dynamic instructor named Herb Cawthorne. Herb had majored in Rhetoric and Communication at the UofO. He had also earned a master's degree in theatre. He used to create amazing theatre performances during which he would reenact speeches by Dr. Martin Luther King Jr. and Malcolm X. We are still in touch these days. He recently wrote me a wonderful note:

> Dear Steve,
>
> Just think, 50 years, I have admired your courage and commitment, your skill and determination. You have fought for your people and your beliefs, without waver, everyday, using your tireless scholarship to uncover the ugliness of domination and abuse by those who wanted what Native Americans had, and would do anything to get.
>
> I set out to teach you the beauty and principles of communication; but you taught me the beauty and principles of the Native way. I am better for it.
>
> With gratitude, and best wishes to Paige, I remain,
>
> Sincerely yours,
>
> Herb[7]

Toward the end of the ten-week course, Herb said I had some natural talent and potential as a public speaker. He recommended that I major in Rhetoric and Communication. He suggested that I set up an appointment with Dr. Dominic Larusso who was Herb's advisor while he was in the program. I ended up taking their advice by choosing Rhetoric and Communication as my major. I thought the skills I would learn could serve as a kind of pre-law program. I thought those skills would prepare me for eventually attending law school, an idea that I later rejected.

I still remember Aristotle's classical definition of rhetoric, "the faculty for finding all the available means of persuasion in a given situation." I became fascinated with rhetorical criticism and analysis, and I figured those skills would come in handy for a career in law. I also began to learn about the role of metaphor and analogy in the reasoning process, and how different narratives end up being framed, something that I learned a lot about from another professor of mine, C. A Bowers, and his course of "Education and the Politics of Cultural Change."[8]

Charles Wilkinson's Federal Indian Law Course

While attending the UofO in the early 1980s, I received permission from Charles F. Wilkinson to take his federal Indian law course at the UofO School of Law. That was when I first read the 1823 U.S. Supreme Court ruling *Johnson* v. *McIntosh*, written for a unanimous Court by Chief Justice John Marshall. Marshall's writing style in the Johnson decision seemed strange and a bit challenging to understand. But that made me all the more determined to figure out what I

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[7] Personal correspondence with the author.

[8] C. A. Bowers, The Promise of Theory: Education and the Politics of Cultural Change (Longman, 1984).

sensed was the deeper meaning of the *Johnson* ruling. I didn't want to simply accept that decision; I wanted to use my rhetorical skills to challenge it. I wanted to learn how to argue against it.

The one thing I did grasp was Marshall's repeated use of the phrase "ultimate dominion." I understood the phrase to mean a kind of ultimate control. And I had the sense that there must be a connection between Marshall's language about "dominion" in the *Johnson* ruling and the 1493 Vatican papal document that I had read about in Deloria's *God is Red*. Even though Marshall only made a passing reference to the papal bull in the *Johnson* ruling, I figured there had to be some deeper connection between those pieces of information, but I had no idea what it might be. And I wondered whether it would ever be possible to prove the existence of such a connection even if it did exist.

From "Dominion" to "Dominium" to "Domination"

Eventually, I got into the habit of reading sections of the *Johnson* ruling daily. I analyzed the sentences, looked at the etymology and history related to specific words, such as "civilization" and "ascendancy," and examined the metaphorical framings (imagery) that Chief Justice Marshall used to write the *Johnson* decision. This took years to accomplish. I also had to develop the discipline to stay focused on the information for long periods of time.

I also read a tremendous number of books in other fields, such as the sociology of knowledge, philosophy, theology, history, U.S. law, and international law. I also read a large number of law review articles about federal Indian law. As a result of all that studying, I began to compile a massive amount of data that I could draw upon as I thought and wrote about the *Johnson* ruling and other Supreme Court rulings.

Meeting Peter d'Errico

In 1989, I came across a book titled *The International Law of John Marshall,* published fifty years earlier in 1939. It was authored by Benjamin Munn Ziegler, a Harvard educated man who was a professor of international law at Amherst College. At one point, Ziegler had placed emphasis on Marshall's use of the term "vacant lands" in the Johnson ruling. He made the distinction between "lands occupied by Indians, but unoccupied by Christians." I wanted to find out if Ziegler was still alive and ask him on what basis he used the word "Christians" rather than "Europeans," which was the norm by the late 1980s.

After placing a number of calls, I was able to reach Barry O'Connell who was teaching at Amherst. He told me I ought to reach out to a friend of his, a professor named Peter d'Errico at the University of Massachusetts in Amherst. When I called Peter he was very receptive to what I was telling him about my research into the Johnson ruling and U.S. federal Indian law generally. We had a great conversation. I didn't call him again until probably 1991, when I decided to call him one day. He said he was at that very moment reading the Johnson ruling. He jokingly said if he didn't figure it out after reading it this time, he was never going to read it again.

Over the years we have become what I like to call "intellectual running partners," and I deeply value our friendship and his brilliant lucid manner of speaking and writing. He has been wonderfully generous with his time and editing abilities over the decades. And his wife Angela has been tremendously patient with all the phone calls over those years. He kindly wrote the Foreword to my book *Pagans in the Promised Land*, and I consider his brilliant book

Federal Anti-Indian Law[9] to be one of the most significant contributions to the study of the anti-Indian nature of federal Indian law and the domination system to have ever been written.

The Latin-English Connection

One day I decided to go to the Eugene, Oregon public library to find a Latin-English dictionary. When I looked up the word "dominion," I found a related Latin term "domo," which I noticed has seven main meanings, "to subjugate," "to subdue," "to force into subservience," "to tame," "to domesticate," "to cultivate," "to till." Over time I realized that those seven terms are the methods and means by which the claim of a right of domination gets asserted, established, and maintained.

About that same time, I came across William Brandon's *New Worlds for Old*.[10] While reading his book I came across his detailed etymology of the word "dominion." He summed up his examination as follows: "Political power grown from property—dominium—was, in effect, domination."[11]

I looked up the word "civilization" on many occasions over the years. But one specific search result stands out in my mind. That was when I came across an entry in *Webster's Third New International Dictionary* which I had never noticed before: "the process of civilizing," "the *forcing* of a cultural pattern on a population to which it [that pattern] is foreign." (emphasis added)

When I looked up the word "forcing" I found "Syn. See power. –v.t.; FORCED, (fōrst)); FOR'CING (fōr'sing). 1. To do violence to; esp. to ravish; violate. 2. To constrain or compel; to coerce." I now see that those meanings suggest a from-the-ship perspective. The voyagers, with malice of forethought, intended to impose their claim of a right of domination wherever they ended up, and they intended to do so by "forcing" a "cultural pattern [of domination]" on free nations and peoples to whom that pattern was foreign.

On another occasion I looked up the word "ascendancy," a word Marshall used when he wrote about the Native peoples of this continent as being "a people over whom the superior genius of Europe might claim an ascendancy." The definition provided was "Governing or controlling influence; domination. –Syn. See SUPREMACY."

Supremacy is defined as "State of being supreme; also, supreme authority or power. 2. The position of being established as superior to all others." And "establish" means "to make stable or firm; to fix immovably or firmly; settle." "To set on a firm basis; to gain full recognition or acceptance of." This suggests that the "ascendancy" (domination) that ends up being considered "established" is expected to be fully accepted and not to be questioned or challenged.

The State [of Domination]

The complete thought "the state of being supreme" was abbreviated into the concise phrase "the state" or "a state." That partial expression of a more complete idea is known as a metonymy or synecdoche, "the part that stands for the whole." Eventually I dove into the meaning of the term "state" as used in numerous international law treatises. And when I came across Max Weber's 1919 essay "Politics as a Vocation," I saw that he had referred to the

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[9] Peter d'Errico, Federal Anti-Indian Law: The Legal Entrapment of Indigenous Peoples (Praeger, 2022).

[10] William Brandon, New Worlds for Old: Reports from the New World and Their Effect on the Social Thought of Europe, 1500-1800 (Ohio University Press, 1986).

[11] Brandon, New Worlds for Old, 121.

phenomenon of "the state" as a particular type of relationship. He called it, "men dominating men." For "the state" to exist, he said, "the dominated must submit themselves to the authority claimed by the powers that be."[12]

In his classic work *The State*,[13] Franz Oppenheimer writes, "The State, completely in its genesis, essentially and almost completely during the first stage of its existence, is a social institution forced by a victorious group over the vanquished, and securing itself against revolt from within and attacks from abroad."[14] He adds: "Teologically, this dominion *(i.e. domination) had no other purpose than the economic exploitation of the vanquished (dominated) by the victors (dominators)."[15]

Sovereignty

I later found out that the political philosopher Jean Bodin had defined the term "sovereignty" as "supremacy over citizens or subjects, unrestrained by the laws." In other words, the claim of "supremacy" [domination] is regarded as "unrestrained by the law." According to this framing, the seat of supreme power imposes domination on everyone, who are, therefore, regarded as subject to the laws imposed, but the seat of supreme power is considered subject to no law. A dominating power which is subject to no other power is the gist of the idea of "sovereignty."

Some years ago, Glenn Morris, a Shawnee friend of mine, brought to my attention Jonathon Havercroft's book *Captives of Sovereignty* (2014).[16] After studying scholars such as Arendt, Foucault, Agamben, Hart, and Negri, Havercroft arrived at the following definition of sovereignty, "an unjust form of political domination that limits human freedom."[17]

As I have read more and more political philosophy, I have come to realize that most people do not have an accurate grasp of the meaning of "sovereignty." Havercroft summed it up well: "unjust… political domination" (this, of course, is not to suggest there is "just" or "fair" form of political domination").

Tribal Sovereignty: Non-Supreme Supremacy

In *A Clearing in the Forest*,[18] Steven L. Winter explains the idea of an Idealized Mental Model (otherwise known as an Idealized Cognitive Model).[19] He uses the term "mother" as an example. "The concept of 'mother'," writes Winter, "is a cluster model characterized by the convergence of several cognitive [mental] models, including a birth model, a nurturance model, and a marital model."[20]

Based on a comparison with the various properties of a prototypical or Ideal Mother, we get other expressions such as "surrogate mother," or "stepmother," "unwed mother," "adopted

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[12] Max Weber, *Politics as a Vocation* (Oxford University Press, 1946).

[13] Franz Oppenheimer, The State: Its History and Development Viewed Sociologically, (The Bobbs-Merril Company, 1914).

[14] Franz Oppenheimer, *The State*.

[15] Ibid, *15*.

[16] Jonathan Haverford, *Captives of Sovereignty* (Cambridge University Press, 2011).

[17] Ibid, 34.

[18] Steven L. Winter, *A Clearing in the Forest: Law, Life, and Mind* (University of Chicago Press, 2001).

[19] Winter, A Clearing in the Forest

[20] Ibid, 91.

mother," "godmother" and so forth. The modifier (or adjective) that is chosen is based on the property or feature of stereotypical motherhood that is *missing* in a given instance. Winter says there "will be some category members that will most fully embody all of the characteristic attributes or features of the category, and other category members that either lack some of those traits or exhibit them only to a lesser degree."[21] When some trait or feature of motherhood is missing, this will result in the use of a modifier such as "surrogate," "unwed," "adopted," "step," "unwed," and "god."

A modifier is placed on the term "sovereignty" when an expected trait of feature of the idealized image of sovereignty is missing. In the 2005 Edition of *Cohen's Handbook of Federal Indian Law*, we find: "Perhaps the most basic principle of all Indian law, supported by a host of decisions, is that those powers lawfully vested in an Indian nation are not, in general, delegated powers granted by express act of Congress, but rather 'inherent powers of a *limited sovereignty* which has never been extinguished."[22] (citing *United States* v. *Wheeler* (1978). (emphasis added).

The Ballentine's Law Dictionary (1969) defines "sovereignty" as "The power to govern; supreme political authority."[23] As noted above, "supremacy" is defined as "the position of being established as superior to all others." "Sovereignty" communicates the idea of a political power that is "absolute" meaning, "free from imperfection and perfect," as well as, "Free from limit, restriction, or qualification."

"Tribal sovereignty" in Cohen's definition is the word 'sovereignty' modified by the word 'limited'. It communicates the oxymoronic idea of a 'supreme' political power that is limited, restricted." What the editors of the Cohen Handbook termed "limited sovereignty" is an oxymoron that's probably equivalent to the idea of a "non-pregnant pregnancy," or an "incomplete completion," or an "imperfect perfection."

Johnson v. McIntosh[24]

In the *Johnson* v. *McIntosh* ruling, Chief Justice Marshall said the following of the original Native inhabitants of the continent: "Their rights to complete sovereignty, as independent nations were necessarily diminished by the original fundamental principle that discovery gave title to those who made it [the discovery]."[25] Recall that "sovereignty" is defined as being "perfect" and "free from limit or restriction." And to diminish means "to lessen the authority or dignity of," and "to degrade; abase; to make imperfect."

When we re-express Marshall's statement, we get: "Their right to live a free existence, as independent nations, was necessarily diminished by the original fundamental principle that "discovery" gave title to those who made the "discovery."

The image of "the authority or dignity of" something being "diminished" necessarily creates the idea of a limitation and a restriction, which contradicts the idea of "sovereignty," and thereby cancels out the idea that an Indian "tribe" has a "supreme political authority."

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[21] Ibid, 89.

[22] *Cohen's Handbook of Federal Indian Law*, Newark, New Jersey § 4.01 [1][a] (LexisNexis 2005 Edition), 206.

[23] Sovereignty James A. Ballentine, *Ballentine's Law Dictionary: With Pronunciations* (Ed., by William S. Anderson, 2nd ed. (Rochester, New York: The Lawyers Co-Operative Publishing Company, San Francisco, CA: Bancroft-Whitney Co.,1969) 1195.

[24] Johnson v. McIntosh, 21 U.S. (8 Wheat.) 543 (1823).

[25] Johnson v. McIntosh | 21 U.S. 543 (1823).

Returning now to the context for this essay, discussed above, let's take a moment to reacknowledge our preinvasion, original free existence as Native nations and peoples. Chief Justice Marshall, on behalf of a unanimous Supreme Court, was using the idea of "discovery" to explain away this original free existence of our nations and peoples.

A Different Way of Expressing the Idea of a Geographical "Discovery"

In the context of the *Johnson* ruling, the term "discover" is accurately defined as "to obtain for the first-time sight or knowledge of a thing existing already but not perceived or known." Some years ago, I grew tired of the word "discovery." It seemed to me that it was preventing people from understanding history on a deeper level. It deflected attention away from the more significant issue, which is the invaders' claim of a right of domination. I wondered if I could write about the history of certain events such as the voyage of Columbus and the Era of Discovery while *not* using the words "discover" or "discovery."

Here's what I devised: Voyagers such as Columbus were sailing by ship across the ocean because they wanted to *identify the geographical location* of lands where a *Christian European claim of a right of domination had never yet been asserted*. Once the location of a given area of land became known to the voyagers, it was then possible for them to begin applying their language and their consciousness to that location by mentally and linguistically *claiming a right of domination* over it and over the people(s) already living there.

The invaders typically called their *claim of a right of domination* in relation to that area "taking possession" of the land, which is a metaphorical expression of the *kind* of reality they were claiming to have created. Polish-American philosopher Alfred Korzybski popularized the meme, "The map is not the territory," and "the word is not the thing."[26] *Claiming* physical possession of the land is not the same as an actual physical possession of the land by means of the claimants' *physical hands* because that would be a physical impossibility.

What could not be done physically, however, could be done metaphorically. The metaphorical phrase "taking possession of the land" results in the construction of a shared reality by a particular community of people from across the ocean who, consistent with the metaphor being used, will treat the land as if it is being "physically" held with their tiny hands. Although they cannot *physically* hold all that land in their human hands, they can metaphorically *pretend* they are "holding" the land and treat that metaphorical framing *as if* it were a *physical* reality.

This is why the invading colonizers and later the U.S. courts had to be careful to never refer to the land as "belonging" to the Native peoples already living in that geographical location. As the ones coming in on top of the Native peoples that have been living there for countless generations, the phrase "their land" in relation to the Indians had to be assiduously avoided because the use of that phrase would imply or suggest that the Native peoples living there have a pre-existing right of actual ownership [a foreclosing and preemptive right of domination] in relation to that entire area. Words such as "occupants" and "inhabitants" could be safely used without contradicting the invaders' claim of "ultimate dominion," meaning their "claim of a right of domination."

Chief Justice Marshall and the Invaders' Consciousness

As noted above, Marshall said in the *Johnson* ruling that the "right" of the Native peoples to continue living a free existence had been "diminished," by what he called "the original

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[26] Alfred Korzybski, *Science and Sanity: An Introduction to Non-Aristotelian Systems and General Semantics* (The International Non-Aristotelian Library Publishing Company, 1962), 750-752

fundamental principle that discovery gave title to those who made it [the discovery]."[27] As also previously noted, the word "discovery" in this context refers to colonizers becoming knowledgeable (mentally aware) of the geographical location of a specific area of land by sailing there and seeing the land.

Once their eyes had "seen" the land (they "laid eyes on the land") for the first time, that geographical location had thereby "entered" the consciousness of the voyagers, and vice versa. Their language, words, and ideas had thereby gained access to that entire area.

The Native peoples who were already living in that geographical location had no ability whatsoever to control how the invaders thought, spoke, or wrote about the country where they had been living for countless generations. They had no ability to prevent the invaders from *mentally* and *physically* creating and maintaining a reality system of domination in that location. And whenever the Native peoples tried to prevent the invaders from creating such a system in that place, the invaders applied lethal force to send them a clear message, "resistance is futile."

The Doctrine of Reality Formation

Most scholars have missed what I consider to be a deeper significance of the *Johnson* ruling. Once the geographical location of a particular land area had been identified that entire area became available for an invasive creation of an entire world. When looked at with a Native view-from-the-shore perspective, Turtle Island ("North America") is indeed a very Old World. The invaders are seen as intending and endeavoring to create what is for them "a new world" of domination. When the situation is evaluated with a view-from-the-ship perspective the voyagers do not see themselves as invaders at all. They see themselves as "pilgrims" and "settlers," and "purveyors of civilization and progress." The gloss is thick.

What the invaders are carrying out, however, is what they claim to be their right to create their own "God-fearing" form of reality in that place. They arrive fully intending to engage in an act of creation comparable to the gods, or "God," with "His" command to "subdue the earth" and dominate all forms of life as stated in Genesis 1:28 in the Bible.

The *newly identified geographical location* to which they sailed had suddenly become *subject to* their language, mental activities (ideas and arguments), and physical activities (e.g., their use of force). Furthermore, there was nothing the Native peoples could do to stop the Christian Europeans from *mentally projecting* their language, their ideas and arguments onto the Native peoples and their lands, and thereby *metaphorically creating* the phenomena of "heathens," "pagans," "infidels," "savages," and "barbarous peoples" where such terms and ideas did not previously exist.

That Marshall understood this is revealed in a sentence he wrote in the Court's 1831 decision in *Cherokee Nation* v. *Georgia*, "They [the Cherokee] occupy a territory to which we assert a title independent of their will."[28] The Cherokee could do nothing to stop the colonizers from asserting a title of domination to Cherokee lands. The kind of "title" Marshall was referring to is found in the following section from the *Johnson* ruling:

> While the different nations of Europe respected the right of the natives as occupants, they asserted the ultimate dominion [right of domination] to be in themselves, and claimed and exercised, as a consequence of this ultimate dominion [claimed right of domination], a power to grant the soil while yet in possession of the natives.[29]

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[27] Johnson v. McIntosh | 21 U.S. 543 (1823)

[28] Cherokee Nation v. Georgia, 30 U.S. (5 Pet.) 1 (1831) at 17.

[29] Johnson v. McIntosh, 21 U.S. at 574.

Pretending a Reality of Domination into Existence

In his discussion of the idea of "conquest" in the *Johnson* ruling, Marshall referred to "the pretension" of "converting the discovery of an inhabited country into conquest." The word "pretension" is derived from the term "pretend," "to hold the appearance of being," "to make a show or profession of falsely or with intent to deceive; feign; sham; as, to *pretend* illness or friendship."

The English term "conquest" traces to the Latin "victoria," meaning "victory," or "triumph; a successful outcome in a contest or struggle," and "the winning of a conquest or struggle." The U.S. Supreme Court in the *Johnson* ruling was evidently saying that if the United States government could mentally pretend to have achieved a permanent victory over the Indians for a long enough period, while imposing control over them, then the resulting state of domination would eventually end up being regarded as "the law of the land" and beyond question or challenge.

In his amazing work *The fall of natural man*,[30] Anthony Pagden examines fifteenth and sixteenth century Spanish attitudes toward the Indians. He says that what eventually became the field of anthropology "begins with the history of an attempt to provide an epistemologically persuasive account of the behaviour [sic] of a real group of people and, furthermore," a group [i.e., the Indians] over whom one European nation, Spain, claimed to exercise sovereignty [domination]."[31] He continues:

> The jurists and theologians discussed in the first five chapters of this book were concerned to provide their king [Spain's Charles V] with a theory of the source of political authority—of, in their language, *dominium* [domination]—in America which would avoid any of the dangers of the traditional Caesaro-papal claims to universal kingship or, more dangerous still because of its close association with Lutheran and Calvinist theories of revolution, the claim that only the godly prince can be a legitimate rule.
>
> The American Indians, they concluded, were subject to the crown [domination] of Spain not by virtue of any positive law, but because their 'poor and barbarous education' had made them, temporarily at least, unable to create civil societies for themselves. What claims to *dominium* [domination] the crown might have in America came to it as a consequence not of its *rights* but of its Christian duty to care for peoples who were still in a condition of childlike imbecility.[32]

This manner of thinking is found in the *Johnson* ruling. Specifically, it is found in the sentence that says the "character and religion" of the continent's inhabitants, "afforded an apology [an excuse] for considering them as a people over whom the superior genius of Europe might claim an ascendancy [i.e., a right of domination]."

The Sociology of Domination

One of the most remarkable books I have come across during my decades of research is Volume I of René Maunier's *The Sociology of Colonies*: *An Introduction to the Study of Race Contact*

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[30] Anthony Padden, The Fall of Natural Man: The American Indian and the Origins of Comparative Ethnology (Cambridge University Press, 1982).

[31] Padden, The Fall of Natural Man, 2.

[32] Ibid, 2-3.

(1949).[33] He titled his second chapter "Definition of Colonies: Domination and Government." Maunier was a Member of the French Academy of Colonial Sciences and Professor of the University of Paris. At one point he stated:

> When we speak of the power which a State exercises, we may imply an actual domination, what the chancelleries call an "influence", an "expansion", a "penetration" ; an actual bond, at least in the beginning, which asserts and paves the way for a legal *imperium*, a domination, or a subjugation in the proper sense, which is "protection" or "annexation" : political and legislative power for which "penetration" is only the prelude and the preparation; this is what the jurists call "allegiance."[34]

As made evident by the dust jacket of volume II of The Sociology of Colonies, by "race contact" Maunier meant "the clash of peoples."[35] "Colonialism," the explanation continues, "has brought the nation or the empire into relations with the tribe or the city. It is the contact of two radically contrasted forms of life; the territorial group against the parental group; national right versus local right; liberty versus authority; invention versus tradition."[36] "All these are factors," it further states, "in the relationship between the ruler [dominator] and his subjects."[37]

Eminent international law professor James Crawford wrote the Foreword for Antony Anghie's *Imperialism, Sovereignty, and the Making of International Law* (2004).[38] There Crawford explains that Anghie examines "a series of episodes in the legal history of the relations between the West and non-Western polities."[39] Anghie, says Crawford, argues that those different episodes reproduce "at different epochs and in different ways an underlying pattern of domination and subordination."[40]

Crawford explicitly states: "From the beginning, international law was not exclusively concerned with the relations between states [of domination] but, and more importantly, with the relations between civilizations and peoples. Moreover these were relations of *domination*."[41]

Conclusion

Anyone who searches the U.S. Supreme Court website for the *Johnson* v *McIntosh* ruling will find the following sentence beneath the heading "Primary Holding": "When a tract of land has been acquired through conquest, and the property of most people who live there arise from the conquest, the people who have been conquered have a right to live on the land but cannot transfer title to the land."

Johnson v. *McIntosh* is considered the starting point of the entire property law system of the United States. But the average American, even the average attorney in the United States seems oblivious of the fact that the word property means "domination," or what William Blackstone

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[33] René Maunier, The Sociology of Colonies: An Introduction to the Study of Race Contact, vol. I (Routledge & Kegan Paul Limited, 1949).

[34] Maunier, *The Sociology of Colonies*, 1:14.

[35] René Maunier, The Sociology of Colonies: An Introduction to the Study of Race Contact, vol. II (Routledge & Kegan Paul Limited, 1949).

[36] Maunier, The Sociology of Colonies, vol. II.

[37] Ibid.

[38] Anthony Anghie, Imperialism, Sovereignty, and the Making of International Law (Cambridge University Press, 2005), xi.

[39] Ibid.

[40] Ibid.

[41] Ibid.

called "despotic dominion." They also seem to draw no mental association between "conquest" and "domination."

Here's how that Summary Holding looks after applying Newcomb's Domination Translator to it: "When a tract of land has been acquired through conquest (domination), and the property (despotic dominion) of most people who live there arise from the conquest (domination), the people who have been conquered (who have been forced to live under domination) have a right to live on the land but cannot transfer title to the land."

What I find fascinating about this is the fact that the entire society of the United States, including the judges seated on the U.S. Supreme Court fail to realize that its federal anti-Indian law system[42] is premised upon a claim of a right of domination over our Native nations and peoples, and over our Native lands and waters. Yet, despite this, the people of the United States most sincerely believe that their society is premised upon the concepts of liberty and freedom.

To make this point crystal clear let's rewrite the language of the Supreme Court's Primary Holding in the *Johnson* ruling in this manner: "When a tract of land has been acquired through domination, and the property of most people who live there arises from that domination, the people who have been forced to live under the resulting domination have a right to live on the land but cannot transfer title to the land."

Chief Justice Marshall confessed to something rather bizarre in the *Johnson* ruling. On behalf of a unanimous Court, Marshall said that the United States was going to engage in an "extravagant pretension" (pretending that something is true while knowing it isn't). As official policy, the United States was going to *pretend* to "convert" the identification of the geographical location of an entire continent (its supposed "discovery" by foreigners) into a claim of a right of domination ("conquest") over that continent.

The U.S. claim of a right of domination over the lands, waters, and original nations and peoples of this continent is the cornerstone of the institution of property law in the United States. It thus stands to reason that the claim of a right of domination is the true nature and purpose of the United States, otherwise known as the American empire. This is the dark truth that we as the original nations and peoples of this Turtle Island continent are now able to reveal and work to overturn, thanks to the domination translator.

For more than twenty-five years I was blessed to learn from and work with my Oglala Lakota friend and mentor Birgil Kills Straight, a ceremonial person and Traditional Head Man of his Oglala Lakota Nation. In 1992 we began our campaign to call upon the Vatican and then Pope John Paul II to revoke the papal bulls of the fifteenth century. Our campaign continues during the papacy of Pope Francis, and it will continue for the foreseeable future.

Sadly, Birgil passed to the spirit world five years ago in 2019. His passing coincided with the forty-second birthday of my daughter Shawna Bluestar Newcomb. Shawna and I now work together to explain why the traditional spiritual value of Reverence for all Life is a more meaningful and healing basis upon which to premise our lives on this beautiful planet.

Another milestone in this work was meeting JoDe Goudy of the Yakama Nation who took "the doctrine" work to heart while he was serving as the Chairman of the Yakama Nation. The Yamaka were able to take a treaty case all the way to the U.S. Supreme Court based on their 1855 Treaty, and the guarantee of their right to travel and trade. They took that opportunity for the first time in the history of the United States to directly challenge the doctrine of Christian discovery and domination in an amicus curiae (friend of the court) brief. Although the

[42] See generally Peter d'Errico, *Federal Anti-Indian Law*.

majority's opinion in favor of the Yakama Nation was not based on their *amicus curiae* brief, the majority did reference the Yakama amicus brief four times.

According to our traditional teachings, we as homo sapiens are instructed to interact and communicate with one another based on a Reverence for the Sacred Elements of Life. At a time when a global techno-totalitarian regime based on "artificial super intelligence" is being rapidly and digitally instituted, what's appears to be needed now more than ever is to remember our Sacred Birthright as Spiritual Beings, and the Model of Liberty provided by the Free Existence of our Native Ancestors. That model is available to benefit us all.

As homo sapiens we need to be steadfast in our refusal to go along with the domination code and its global system of despotic dominion. We need to orient our lives on Mother Earth based on what Shawna calls The Reverence Code. May we all learn how to live and communicate respectfully, with a deep and abiding love for the Sacred Path of Life, one another, and All Living Things. As my wife Paige says, "Join us on our Path of Recovery from Discovery and Domination."

Let me end with words of praise and admiration for the tireless and selfless dedication our Kanaka Maoli friend William "Pila" Laronal from Hawai'i gave to this work. He passed to the spirit world last November, and he is most certainly missed. Our momentum continues.